

VP-05

Board Papers and Minutes Compilation

Meetings of 7 August, 28 August, 12 September and 1 October 2025

Entity	VertexPay Technologies Private Limited
Status	Participant Case File
Benchmark note	Synthetic record. Names and identifiers are fictional; statutory and regulatory sources are real.

This compilation contains the Company Secretary consultant's collated notices, agenda extracts and minutes. It also reproduces comments received from directors. The original minute book, video recordings and signed attendance registers are not included.

A. Board meeting - 7 August 2025

Notice: 31 July 2025 | Meeting: 7 August 2025, 4:00 p.m. IST | Video conference

Field	Record
Present	Aarav Mehta; Nisha Rao; Kavya Menon; Rohan D'Souza
Invitees	Leena Iyer (CFO); Vikram Sen (Head - Compliance); Priya Sethi (CS consultant)
Quorum record	Four directors; declared present
Key papers	July MIS; Nimbus account note; related-party vendor schedule

The CFO reported unaudited cash of INR 38.6 million and average monthly net burn of INR 9.8 million, implying approximately 3.9 months of runway before collections. Aarav said two Nimbus milestone invoices totalling INR 31.5 million were expected in August.

Vikram Sen stated that sales decks used the phrase 'RBI-approved payment stack'. Aarav said the phrase meant partner-bank approval, not an RBI authorisation of VertexPay, and directed Compliance to propose corrected wording within one week.

Kavya requested copies of the Vertex Labs LLP statement of work and all payments since April. Aarav disclosed that his brother Kunal is a partner and said the Board had been informed at Series A diligence. Priya could not locate a standalone Board approval after closing.

Resolution: management to circulate a 13-week cash flow, Nimbus receivables support, and Vertex Labs contract by 12 August. No financing or suspension resolution was proposed. Minutes circulated on 19 August, twelve days after the meeting.

B. Board meeting - 28 August 2025

Notice: 22 August 2025 | Meeting: 28 August 2025, 11:00 a.m. IST | Hybrid

Field	Record
Present	Aarav Mehta (video until 12:08); Nisha Rao; Kavya Menon; Rohan D'Souza
Quorum record	Four at commencement; three after Aarav disconnected
Papers	Nimbus letter dated 22 August; forensic scoping note; cash forecast v3
Conflict	Aarav disclosed relationship with Vertex Labs and did not vote on item 4

Nimbus's letter threatened suspension of the pilot unless representations about authorisation were corrected and July transaction logs delivered. Aarav disputed the letter's accuracy and said Nimbus's commercial team had approved the wording. The Board directed that no communication be sent without Compliance review.

The CFO reported INR 24.1 million paid to Vertex Labs LLP between April and August 2025, including INR 9.6 million on 18 July, 22 July and 2 August. The ledger described two transfers as 'cloud security deposit'; bank narration used 'consulting advance'.

Aarav stated the vendor had pre-funded dedicated hardware and that delay would endanger Nimbus delivery. Kavya said the amount exceeded contractual thresholds. Aarav disconnected at 12:08 after saying, 'You cannot retrofit consent because fundraising is hard.'

After disconnection, the remaining directors approved an independent forensic review but expressly deferred any finding of misconduct. Priya's draft minutes dated 2 September record the vote as 3-0. Aarav's email comment of 4 September states the meeting lost quorum when he left and that he did not consent to continuation.

C. Urgent board meeting - 12 September 2025 (disputed)

Notice: 10 September 2025, 8:42 p.m. | Meeting: 12 September 2025, 8:30 a.m. IST | Video conference

Field	Record
Directors invited	Aarav Mehta; Nisha Rao; Kavya Menon; Rohan D'Souza
Attendance in minutes	Nisha Rao; Kavya Menon; Rohan D'Souza. Aarav marked 'invited; did not join'.
Emergency stated	Cash exhaustion projected 29 September; Nimbus suspension; preservation risk
Attachments listed	Bridge cap table v5; draft suspension letter; forensic interim note dated 11 September

The minutes say the meeting was a first meeting, not an adjourned meeting, and that Article 18 required only three directors including the Investor Nominee. They do not mention SHA clause 3.2 requiring the Founder 1 Director for original-meeting quorum.

The forensic interim note reported unsupported Vertex Labs payments of INR 24.1 million, deletion of a Slack channel named #nimbus-warroom and a 6 September export of source-code repositories. It did not conclude that Aarav received funds. The full forensic image had not completed.

Resolution 1: suspend Aarav on full pay, revoke operational access, preserve devices and invite a response by 17 September. The draft suspension letter attached to the notice allowed a response by 19 September; the signed letter states 17 September.

Resolution 2: convene an EGM on 30 September to consider Aarav's removal as director and an issue of up to 5,000,000 equity shares at INR 1.80 each to Meridian and Riverstone Fintech Opportunities SPV. The minutes label the bridge a Reserved Matter and record Founder 1 approval as 'not applicable due conflict', although the contractual exception is not identified.

Resolution 3: change bank mandate so any two of Nisha, Leena and Kavya may authorise transfers. The bank form reproduced later bears a date of 11 September, one day before this meeting.

The signed PDF says 'digitally signed by Rohan D'Souza on 15 September'. A later file-properties report shows the PDF was created 5 October 2025 from 'Minutes_12Sep_reconstructed.docx'. Rohan says he approved substance by email on 15 September but did not see the final wording.

D. Board meeting - 1 October 2025

Notice: 30 September 2025, 6:10 p.m. | Meeting: 1 October 2025, 10:00 a.m. IST

Field	Record
Present	Nisha Rao; Kavya Menon; Rohan D'Souza
Aarav	Not invited; Company position was that removal became effective at EGM
Business	Bridge allotment; employment termination; bank actions
Quorum	Three directors including Investor Nominee

The Board recorded that the EGM special resolution authorised issue of up to 5,000,000 shares at not less than INR 1.80. It allotted 4,000,000 to Meridian for INR 72 million and 1,000,000 to Riverstone for INR 18 million. The executed subscription agreement is not in this file. Bank records show INR 72 million received 3 October and INR 17.1 million received 4 October; the missing INR 0.9 million is described by the CFO as 'withholding/fee netting', though share subscription money ordinarily does not match that description.

The Board treated Aarav as a Bad Leaver for fraud and wilful misconduct, terminated employment with immediate effect and authorised a call option over 1,417,500 of his shares (35% of 4,050,000) at INR 0.10 each. No transfer form, valuation or completed purchase is included.

Rohan recorded a dissent from the fraud finding, supported suspension and termination without Cause, and requested a final forensic report. The signed minutes nevertheless state 'all resolutions unanimously carried'; an appendix reproduces Rohan's 3 October email reserving his position.

The Company authorised legal proceedings and a response to Aarav's anticipated notice. Minutes were first circulated 8 October.

E. Director comments and document trail

Date	Author	Comment / record
4 Sep 2025	Aarav	Objected that 28 August meeting lost quorum and requested raw recording.
11 Sep 2025	Priya	Email to Kavya: 'I have not received Aarav delivery confirmation for tomorrow's link.'
15 Sep 2025	Rohan	Approved suspension pending investigation; expressly declined fraud conclusion.
5 Oct 2025	File properties	12 September minutes PDF created from reconstructed Word file; author field 'KM Office'.
8 Oct 2025	Priya	Circulated 1 October draft; asked whether 'unanimous' should be changed to 'majority'.